

24VECV02917 24VECV02917

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-23

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Case Number: 24VECV02917 Hearing Date: September 23, 2026 Dept: B

Tentative Ruling

Pena v. Karayev, Case no. 24VECV02917

Hearing date September 23, 2026

Plaintiffs'

Petition to Confirm Minor's Compromise – UNOPPOSED

Plaintiffs

tenants Edward Pena, Sheena Pena, and minor plaintiffs Aislyn Pena, Aria Pena, Avaiya Pena and Austin Pena, sue defendants Karayev, alleging habitability issues, including water intrusion, mold contamination, rodent infestation, and other unsafe and uninhabitable conditions. Plaintiffs petition for approval of minors compromises for minor plaintiffs Aislyn Pena, Aria Pena, Avaiya Pena and Austin Pena. The petitions are unopposed.

Aislyn

Pena, 18, suffered sinus and upper respiratory infections. Minors Comp., paras.

2(c), 6. Avalya Pena, 13, suffered sinus and upper respiratory infections. Id.

Aria Pena, 8, suffered sinus and upper respiratory infections. Id.

Austin Pena, 3, suffered premature birth and weakened immune system

aftereffects. Id. All four minors underwent medical consultation and

care at the Facey Medical group - Tarzana, PM Pediatric Urgent Care and Children's

Hospital LA. Id. at para. 7. All four of the minors have fully

recovered. Id. at para. 8(a).

The

proposed settlement is \$395,000. Minors Comp., para. 10(a). Aislyn Pena is to receive \$25,000. Id. at 10(b). Avalya Pena is to receive \$25,000. Id. Austin Pena is to receive \$25,000. Id. As to Aria Pena, para. 10(b) has been left blank; the court cannot grant an incomplete petition.

No

medical expenses are to be repaid as to any of the four minors. See Minors Comp., para. 16. Each minor will pay \$6,250 in attorney's fees. Id. Each minor will receive \$18,750 in net proceeds. Id. The proceeds are to be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. The name, branch, and address of each depository are specified in attachment 18b(2). Id. at para. 18(b)(2). The financial institution is U.S. Bank, branch no. 7241, 23642 Calabasas Road, Building no. 2, Calabasas, CA 91302. Id. at attch. 18b(2).

GRANTED

contingent on the petition for Aria Pena being refiled with all necessary sections being filled out.